

25LBCV00438 25LBCV00438

County: los-angeles

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Case Number: 25LBCV00438 Hearing Date: July 7, 2026 Dept: S27

Applicable

Law

CCP § 657

provides in part:

The verdict

may be vacated and any other decision may be modified or vacated, in whole or in part, and a new or further trial granted on all or part of the issues, on the application of the party aggrieved, for any of the following causes, materially affecting the substantial rights of such party:

1. Irregularity in the proceedings of the court, jury or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial.
2. Misconduct of the jury; and whenever any one or more of the jurors have been induced to assent to any general or special verdict, or to a finding on any question submitted to them by the court, by a resort to the determination of chance, such misconduct may be proved by the affidavit of any one of the jurors.
3. Accident or surprise, which ordinary prudence could not have guarded against.
4. Newly discovered evidence, material for the party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial.

5. Excessive or inadequate damages.

6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law.

7. Error in law, occurring at the trial and excepted to by the party making the application.

When a new trial is granted, on all or part of the issues, the court shall specify the ground or grounds upon which it is granted and the court's reason or reasons for granting the new trial upon each ground stated.

A new trial shall not be granted upon the ground of insufficiency of the evidence to justify the verdict or other decision, nor upon the ground of excessive or inadequate damages, unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the court or jury clearly should have reached a different verdict or decision.

(CCP § 657.)

Granting a motion for a new trial requires a re-examination of issues of fact or law after an underlying trial and decision by a judge or jury. (CCP §§ 656, 657.) "The effect of an order granting a new trial is " 'as though no trial had ever been had.... The case [is] before the court for trial de novo.' [Citation.]" [Citation omitted.] The grant of a new trial '[leaves] the case at large and the parties [are] placed in the same position as if it had never been tried....' " (Saakyan v. Modern Auto, Inc. (2002) 103 Cal.App.4th 383, 390.)

When a motion for a new trial is based upon an "error in law" under CCP § 657(7), "a trial court may grant a new trial if 'its original ruling, as a matter of law, was erroneous.'" (Collins v. Sutter Mem'l Hosp. (2011) 196

Cal.App.4th 1, 17–18 [quoting *Ramirez v. USAA Cas. Ins. Co.* (1991) 234 Cal.App.3d 391, 397].) Error in law is to be contrasted against a verdict that is “against law,” which means that it was “unsupported by any substantial evidence.” (*Sanchez-Corea v. Bank of Am.* (1985) 38 Cal.3d 892, 906 [quoting *Kralyevich v. Magrini* (1959) 172 Cal.App.2d 784, 789].) Any “error of law,” “irregularity in the proceedings,” or abuse of discretion must also be prejudicial. “[T]he trial court is bound by the rule of California Constitution, article VI, section 13, that prejudicial error is the basis for a new trial, and there is no discretion to grant a new trial for harmless error.” (*Sherman v. Kinetic Concepts, Inc.* (1998) 67 Cal.App.4th 1152, 1161 [citation omitted]; see Cal. Const., art. VI, § 13 [“No judgment shall be set aside, or new trial granted, in any cause, on the ground of . . . any error as to any matter of procedure, unless, after an examination of the entire cause, including the evidence, the court shall be of the opinion that the error complained of has resulted in a miscarriage of justice.”].)

Preliminary Matters

A. Timeliness of Opposition

“Within 10 days of filing the notice [of intent to move for new trial], the moving party shall serve upon all other parties and file any brief and accompanying documents, including affidavits in support of the motion. The other parties shall have 10 days after that service within which to serve upon the moving party and file any opposing briefs and accompanying documents, including counter-affidavits. The moving party shall have five days after that service to file any reply brief and accompanying documents. These deadlines may, for good cause shown by affidavit or by written stipulation of the parties, be extended by any judge for an additional period not to exceed 10 days.” (CCP § 659a.)

Plaintiff

argues that Defendant’s opposition should be disregarded as untimely. Plaintiff filed and served the motion on April 29, 2026. Defendant filed its opposition on June 11, 2026, which is untimely under the statute. Defendant’s opposition was due no later than May 13, 2026. Defendant did not file an affidavit or stipulation showing good cause for an extension, and even if good cause was shown, that extension would only give Defendant until May 23, 2026, making the

opposition untimely still. Thus, although Plaintiff was able to respond substantively and does not appear prejudiced, the Court must disregard Defendant's untimely opposition per the statute.

Analysis

B. Whether the Court Improperly Weighed Evidence

Plaintiff

argues that this Court's ruling "reflects precisely the type of improper evidentiary weighing prohibited at the summary judgment stage" when the Court accepted Defendant's evidence regarding weekly inspection practices "while discounting Plaintiff's evidence and arguments demonstrating that applicable safety regulations required daily inspections and recordkeeping." Plaintiff cites to their opposition to the MSJ wherein they argued that "California Code of Regulations, title 22, sections 65523 and 65535 impose mandatory duties on pool operators to conduct and document daily inspections of ancillary facilities, including saunas." (Emphasis added.) Plaintiff puts forth that Defendant's own evidence established at most a weekly inspection protocol, which directly conflicts with these regulatory requirements.

Here,

Plaintiff's characterization of their evidence in opposition to the MSJ and the statutory authority for frequency of inspections of the sauna is factually incorrect. Plaintiff's opposition to the MSJ never credibly put forth that daily inspections of the sauna were statutorily mandated, such that the Court did not err in finding no triable issue of material fact on this issue. Plaintiff's opposition to the MSJ stated, "Title 22 of the California Code of Regulations, including sections 65501(a), 65502, 65523, and 65535, require operators to maintain facilities in good repair and to conduct and document routine safety inspections. . . . 22

CCR § 65523(a) and (d) require operators to maintain written daily records of inspections, maintenance, and corrective actions taken to address safety issues." CCR§ 65501(a) defines "Ancillary Facility" as "any area used in conjunction with or for the operation of a public pool, including, but not limited to, public dressing rooms, lockers, shower or bathroom areas, drinking fountains, equipment rooms, pool deck areas, pool enclosures, or building spaces, that is intended to be used by pool users."

The

statutes Plaintiff references make no mention of daily inspections of ancillary facilities such as saunas where Plaintiff's alleged injury occurred. The only mention of daily inspections in CCR§ 65523 concerns pool operators of public pools being required to "test the disinfectant residual and pH of the public pool water a minimum of once per day. . . The pool operator shall maintain a written daily record of all test results, equipment readings, calibrations, and corrective action taken at the public pool site." CCR§ 65535 similarly lacks the "daily" language: "The pool operator shall keep all parts of the public pool site well-maintained, including, but not limited to, the public pools, water treatment systems, ancillary facilities, signs, showers, toilets, dressing facilities, drinking fountains, diaper-changing stations, floors, walls, partitions, doors, and lockers."

Further,

Plaintiff's cited code section "CCR§ 65502" does not exist.

Overall,

Plaintiff fails to reasonably put forth a basis for their statutory interpretation, and improperly characterizes their interpretation as "evidence" that this Court failed to consider. Plaintiff failed to carry their burden in opposition to summary judgment and this Court was within its bounds to find as such.

Plaintiff's

next argues that the Court (1) "improperly resolved issues relating to the enforceability of the liability waiver. .

despite evidence [of] statutory noncompliance" and (2) "drew inferences in favor of the moving party while rejecting reasonable competing inferences supported by Plaintiff's evidence. . . by choosing between those competing interpretations—particularly with respect to inspection adequacy" are similarly unavailing for the reasons already enumerated.

Thus,

Plaintiff's motion is DENIED on this basis.

C. Irregularity in the Proceedings

Plaintiff

argues that an irregularity in the proceedings occurred when the Court ruled on

Defendant's objections to Plaintiff's opposition, but failed to rule on Plaintiff's objections to Defendant's reply. On April 2, 2026, after briefing concluded and all briefing deadlines passed, Plaintiff objected to the declaration of Madee Rafuson in support of Defendant's Motion for Summary Judgment.

Here,
the Court disregarded Plaintiff's objections to the declaration of Madee Rafuson in support of Defendant's Motion because they were waived. Defendant relied on the declaration of Madee Rafuson in its moving papers and separate statement. Plaintiff filed opposition on March 16, 2026, without lodging any objections. Plaintiff puts forth no valid reason for failing to object in opposition, instead waiting to object on April 2, 2026, five (5) days before the hearing and after Defendant filed its reply.

Plaintiff
argues Rafuson's unavailability for deposition as a basis for the objection to her declaration, which they claim to have learned "shortly before the hearing." In support of this Motion, Counsel submits his declaration, which largely consists of improper legal argument. Counsel declares, without foundation, that he "is informed and believe that Defendants provided late notice regarding the unavailability of declarant Madee Rafuson, asserting she was no longer employed by Defendants. This late disclosure effectively prejudiced Plaintiff's ability to challenge the veracity of her assertions through a timely deposition." (Swinton Decl., ¶ 4.) Counsel puts forth no communications with Defendant, or any other facts establishing how or when Plaintiff received "late notice" of Rafuson's unavailability for deposition. Further, Plaintiff puts forth no reasonable explanation for failing to inquire as to Rafuson's availability for deposition earlier, rather than seemingly waiting until after they filed opposition. Assuming Rafuson had been available for deposition, which Plaintiff could have only learned after filing opposition, Plaintiff fails to argue how this availability would have changed the Court's ruling. Plaintiff waived this objection by failing to raise it in opposition. Plaintiff's lack of diligence is the cause of their own peril.

Thus,
Plaintiff's motion is DENIED on this basis.

D. Accident or Surprise

Plaintiff argues for relief on the basis of “surprise or excusable neglect,” again claiming that Plaintiff learned shortly before the hearing that Madee Rafuson was unavailable for deposition. Again, the Court finds that Plaintiff failed to inquire as to the availability of the witness for deposition before filing their opposition and failed to raise the issue in opposition.

Plaintiff declares that “[t]he unavailability of a critical defense declarant, whose statements the Court relied upon in granting Summary Judgment, was a surprise that I could not have reasonably guarded against.” (Hernandez Decl., ¶ 7.) This Court disagrees. Plaintiff’s counsel could have guarded against this “surprise” by timely inquiring as to the declarant’s availability for deposition and raising such objections in opposition. Even taking Plaintiff’s argument generously, were Plaintiff to have learned after filing opposition that Madee Rafuson was available for deposition, it is unclear how that would have affected the Court’s ruling as Plaintiff could not have used that deposition in its already filed opposition. Plaintiff’s lack of diligence is the root cause of this issue.

Thus,
Plaintiff’s motion is DENIED on this basis.

E. Newly Discovered Evidence

In
Plaintiff Angel Hernandez’s declaration, which largely consists of improper legal argument, Plaintiff declares that “[s]ince the Court’s ruling on April 7, 2026, I have

discovered additional evidence
regarding the Defendants’ failure to comply with specific

safety regulations at the facility.
This evidence was not available to me at the time of the

Summary Judgment hearing despite my
diligent efforts to investigate the matter.” (Hernandez Decl., ¶ 6.) However, in the body of the Motion, Plaintiff fails to identify what this newly discovered evidence is. Plaintiff essentially makes no argument regarding newly discovered

evidence. Legal conclusions are not argument.

Thus,

Plaintiff's motion is DENIED on this basis.

F. Insufficiency of Evidence or Error
in Law

Plaintiff's

motion makes no argument regarding insufficiency of evidence or error in law.

Thus, Plaintiff's motion is DENIED
on this basis.

CONCLUSION

Plaintiff Angel Hernandez's Motion for New
Trial / Relief from Judgment is DENIED.

Moving

party to give notice.